No. 98-376

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In The

Supreme Court of the United States

October Term, 1997

WARNER JACKSON, *et al.*,

v. *Petitioners,*

JOHN T. BENSON, *et al.*,

Respondents.

MILWAUKEE TEACHERS' EDUCATION ASSOCIATION, *et al.*,

v. *Petitioners,*

JOHN T. BENSON, *et al.*,

Respondents.

NATIONAL ASSOCIATION FOR THE ADVANCEMENT OF COLORED PEOPLE, *et al.*,

v. *Petitioners,*

JOHN T. BENSON,

Respondent.

On Petition For A Writ Of Certiorari To The Supreme Court Of Wisconsin

STATEMENT OF RESPONDENTS PARENTS FOR SCHOOL CHOICE, *ET AL.*, IN RESPONSE TO PETITION FOR WRIT OF CERTIORARI

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COUNTERSTATEMENT OF ISSUE PRESENTED

Does the expanded Milwaukee Parental Choice Program, Wis. Stat. § 119.23, which places state funds at the disposal of low-income parents to choose schools for their children, and adds private religiously affiliated schools to a preexisting array of public and private nonsectarian educational choices, violate the Establishment Clause of the First Amendment?

TABLE OF CONTENTS

Page

COUNTERSTATEMENT OF ISSUE PRESENTED i

TABLE OF AUTHORITIES iv

INTRODUCTORY STATEMENT 1

STATEMENT OF THE CASE 2

REASONS FOR GRANTING THE WRIT 4

I. THE FAMILIES IN THE MILWAUKEE PARENTAL CHOICE PROGRAM NEED TO HAVE THE CONSTITUTIONAL CLOUD REMOVED 4

II. BECAUSE PARENTAL CHOICE PLAYS A CENTRAL ROLE IN EDUCATION REFORM, ITS CONSTITUTIONALITY SHOULD BE RESOLVED AS QUICKLY AND DEFINITIVELY AS POSSIBLE 6

A. Parental choice is a central component of efforts around the nation to deliver high-quality educational opportunities to disadvantaged and minority school children 6

B. The Court should not wait to resolve the constitutional issue because it is frequently raised in legislative debates over parental choice, necessitating clear guidance from this Court 10

III. THIS CASE PROVIDES AN IDEAL OPPORTUNITY TO RESOLVE THE CONSTITUTIONALITY OF PARENTAL CHOICE BECAUSE IT PRESENTS A PROTOTYPICAL PARENTAL CHOICE PROGRAM AND THE RECORD IS WELL-DEVELOPED 13

TABLE OF CONTENTS – Continued

Page

IV. ALTHOUGH THE DECISION BELOW ACCORDS WITH THE DECISIONS OF THIS COURT, A SPLIT OF AUTHORITY OVER PARENTAL CHOICE SUGGESTS THE NEED FOR THE COURT TO SETTLE THIS IMPORTANT QUESTION..... 15

A. The Wisconsin Supreme Court's decision correctly applies this Court's Establishment Clause jurisprudence 16

B. Lower courts have reached conflicting conclusions in applying this Court's precedents..... 19

CONCLUSION 26

TABLE OF AUTHORITIES

Page

CASES

Agostini v. Felton, 117 S. Ct. 1997 (1997) 14, 17, 18, 19, 21, 25

Bagley v. Maine Dep't of Educ., slip op., No. CV-97-484 (Me. Superior Ct. Apr. 20, 1998)..... 23

Brown v. Board of Education, 347 U.S. 483 (1954) 6, 7

Campbell v. Manchester Board of Sch. Directors, 641 A.2d 352 (Vt. 1994).....20, 21, 24, 25, 26

Chittenden Town Sch. Dist. v. Vermont Dep't of Educ., slip op., No. S0478-96 RcC (Vt. Superior Ct., Rutland Cty., June 27, 1997) 24

Committee for Public Education v. Nyquist, 413 U.S. 756 (1973) ..... *passim*

Davis v. Grover, 480 N.W.2d 460 (Wis. 1992) 2, 7, 8

Gatton v. Goff, slip op., No. 96-CVH-01-193 (Ohio Ct. Common Pleas July 31, 1996) 22

Kotterman v. Killian, No. CV-97-0412 SA (Ariz. filed Sept. 29, 1997) 25

Lemon v. Kurtzman, 403 U.S. 602 (1971)..... 17

Mueller v. Allen, 463 U.S. 388 (1983).. 17, 18, 19, 21, 25, 26

Rosenberger v. Rector and Visitors of Univ. of Va., 515 U.S. 819 (1995) 17, 19, 21

Simmons-Harris v. Goff, No. 96APE08-982, 1997 WL 217583 (Ohio Ct. App. May 1, 1997) 22, 23

Strout v. Maine Dep't of Educ., slip op., No. 97-259-B-H (D. Me. Aug. 13, 1998)..... 24

Swart v. South Burlington Town Sch. Dist., 167 A.2d 514 (Vt. 1961) 20, 26

TABLE OF AUTHORITIES – Continued

Page

Witters v. Washington Dep't of Serv. for the Blind, 474 U.S. 481 (1986) 14, 17, 19, 21, 25

Zobrest v. Catalina Foothills Sch. Dist., 509 U.S. 1 (1993) 17, 19, 25

CONSTITUTIONS, STATUTES, AND RULES

U.S. Const. amend. I. ..... *passim*

U.S. Const. amend. X 10

Me. Rev. Stat. Ann. tit. 20, § 2951(2) 24

Vt. Stat. Ann. tit. 16, § 822(a)(1) 20

Wis. Stat. § 119.23 3

MISCELLANEOUS

Commonwealth of Pennsylvania Legislative Journal, Dec. 11, 1991, 175th Session 10

Commonwealth of Pennsylvania Legislative Journal, June 16, 1995, 179th Session 11

John E. Chubb and Terry M. Moe, *Politics, Markets & America's Schools* (1990) 8

Lois Fecteau, "Vouchers for Schools Deep-Sixed," *Albuquerque Journal* (Feb. 5, 1998) 12

Jan Ferris, "Voucher Plan Leaves a Trail of Confusion," *Sacramento Bee* (Jan. 11, 1996) 11

Rep. William D. Ford, "Vouchers for Any Elementary School? Don't Send Taxes to Religious Schools," *St. Louis Post-Dispatch* (Aug. 31, 1992) 12

TABLE OF AUTHORITIES – Continued

Page

Howard L. Fuller and Sammis B. White, *Expanded School Choice in Milwaukee* (1995) 7

Jay P. Greene, Paul E. Peterson, and Jiangtao Du, *The Effectiveness of School Choice in Milwaukee: A Secondary Analysis of Data from the Program's Evaluation* (1996) 3, 9

Rob Hotakainen, "Legislative Preview; School Vouchers," *Star Tribune (Minneapolis)* (Jan. 14, 1996) 12

Jon Jeter, "As Test of Vouchers, Milwaukee Parochial School Exceeds Expectations," *Washington Post* (Aug. 31, 1998) 5

Larry Kaplow, "Panel Wary of Private School Plan," *Palm Beach Post* (Feb. 8, 1995) 12

Dennis Kelly, "Kids' Scores for Reading 'In Trouble'," *USA Today* (Apr. 28-30, 1995) 7

Jenny Labalme & Larry MacIntrye, "Senate Passes Remediation Measure," *Indianapolis Star* (Mar. 7, 1995) 12

Jon Matthews, "School Voucher, Welfare-Limits Bills Rejected," *Sacramento Bee* (July 4, 1996) 11

Milwaukee Public Schools Directions (1995) 18

Derek Neal, "The Effects of Catholic Secondary Schooling on Educational Achievement," 15 *J. Labor Econ.* 98 (1997) 9

TABLE OF AUTHORITIES – Continued

Page

Paul E. Peterson and Byran C. Hassel, eds., *Learning From School Choice* (1998) 9

Johnna Pro, "Choice Proposal Faces Debate," *Pittsburgh Post-Gazette* (May 11, 1995) 12

Ray Serati, "School Vouchers Getting Another Vote in the House," *State Journal-Register* (Apr. 24, 1995) 12

Scott Stephens, "School Vouchers Unconstitutional, ACLU Contends," *The Plain Dealer (Cleveland)* (Mar. 30, 1995) 12

Jim Sullinger, "School Vouchers Rejected," *Kansas City Star* (Mar. 1, 1995) 12

Stephan Thernstrom and Abigail Thernstrom, *America In Black and White: One Nation, Indivisible* (1997) 8

"Under the Dome," *Denver Post* (Apr. 16, 1996) 12

"U.S. Students Make Progress in Math," *Dallas Morning News* (Feb. 28, 1997) 8

David Vise, "District School Voucher Bill Gets Congressional Approval," *Washington Post* (May 1, 1998) 11

INTRODUCTORY STATEMENT

Respondents Parents for School Choice, Pilar Gonzalez, Dinah Cooley, Julie Vogel, Kate Helsper, Blong Yang, Gail Crockett, Yolanda Lassiter, and Jeanine Knox join petitioners in urging the Court to resolve the question presented. After years of waiting, these parents and thousands of others with limited economic means in Milwaukee now have the opportunity to direct their children's state education funds to the schools of their choice. But so long as claims of unconstitutionality shroud parental choice programs, those parents cannot be secure about their children's future.

The crisis in urban public education is perhaps the gravest challenge facing Americans today, and parental choice constitutes one of the most vibrant and promising responses. Constitutional arguments are raised against parental choice in both the judicial and legislative arenas. Attempting to apply this Court's Establishment Clause jurisprudence, different courts have reached conflicting conclusions as to the constitutionality of parental choice. Given the resulting legal uncertainty, conscientious legislators need guidance from this Court. This case presents a well-developed factual record and a functioning parental choice program that is a model for education reform efforts around the nation, and thus provides an ideal opportunity to resolve the constitutional issue in the most broadly applicable context. The decision on review provides a thorough and well-reasoned analysis of the constitutional issue, and carefully and correctly applies this Court's Establishment Clause jurisprudence. Yet other courts, interpreting the same precedents, have reached contradictory results. Respondents therefore respectfully

urge this Court to take the case and to affirm the judgment of the Wisconsin Supreme Court.

STATEMENT OF THE CASE

Respondents add the following to petitioners' Statement of the Case.

Respondents are defendants-intervenors consisting of Parents for School Choice, a community organization that advocated expansion of the Milwaukee Parental Choice Program, and eight parents acting on behalf of their children, who are among the intended beneficiaries of the expanded parental choice program.

The Milwaukee Parental Choice Program arises in the context of the state's largest urban public school system, a system mired in chaos and dismal performance. As the Wisconsin Supreme Court observed in *Davis v. Grover*, 480 N.W.2d 460, 469 (Wis. 1992), "the Milwaukee Public School District has significantly greater education and poverty problems than any other school district in the state." Among the legislature's responses were the "Chapter 220" interdistrict public school transfer program, magnet schools, charter schools, and out-placement of "at-risk" children in private schools. During the 1990s, the state also significantly increased its financial commitment to the Milwaukee Public Schools, both in absolute dollars and as a relative share of the district's budget. See Affidavit of Milwaukee School Board Member John Gardner (Jt. App. 246).[1]

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[1] Jt. App. refers to the Joint Appendix prepared for use before the Wisconsin Supreme Court.

In 1989, the legislature enacted the Milwaukee Parental Choice Program, Wis. Stat. § 119.23, allowing up to 1,000 economically disadvantaged youngsters[2] to use their portion of state public school funds at participating nonsectarian private schools which would agree to admit the students on a random selection basis and to accept the state's funding as full payment of tuition. The state's payment is capped at the school's tuition or actual per-pupil operating costs, whichever is greater. Checks are made payable to the parents, who sign them over to the schools of their choice.[3]

For the first several years, data from the program were restricted to a single researcher chosen by the Wisconsin Department of Public Instruction.[4] After the information was made more widely available in 1995, a team of researchers led by Dr. Paul Peterson of Harvard University's John F. Kennedy School of Government found substantial academic gains for youngsters in their third and fourth years in the choice program. See Jay P. Greene, Paul E. Peterson, and Jiangtao Du, *The Effectiveness of*

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[2] The actual eligibility was set at one percent of the students in the Milwaukee Public Schools. That number subsequently was increased to 1.5 percent.

[3] For this reason, petitioners' assertion that the amended program will "divert" public funds to private schools (see, e.g., Pet. 10) is inaccurate. The program diverts not money, but the power to choose. As the Wisconsin Supreme Court found, "[N]ot one cent flows from the State to a sectarian private school under the amended MPCP except as a result of the necessary and intervening choices of individual parents." Pet. App. 28a.

[4] The Wisconsin Department of Public Instruction, headed by the Superintendent, an elected official, has been quite hostile to the Milwaukee Parental Choice Program.

School Choice in Milwaukee: A Secondary Analysis of Data from the Program's Evaluation (1996), cited in *Jackson v. Benson*, Pet. App. 44a n.26. Meanwhile, reform advocates including former Milwaukee Public Schools (MPS) Superintendent Dr. Howard L. Fuller urged an expansion of the Milwaukee Parental Choice Program, both because demand for the program exceeded supply and to exert pressure on MPS to reform. See Testimony of Dr. Howard L. Fuller (Jt. App. 339-40).

In 1995, the legislature expanded the program in two principal ways: (1) it successively increased the number of eligible students to seven percent of MPS students and then to 15 percent; and (2) it lifted the exclusion of religiously affiliated schools from the program. The statute required participating religious schools to allow students to opt out of religious activities. The expanded program was challenged in the present lawsuit, and the expansion was enjoined in August 1995 by the Wisconsin Supreme Court. It was not until that court ruled in June 1998 in the decision now on review that the injunction was finally lifted in its entirety and the program was allowed to expand.

REASONS FOR GRANTING THE WRIT

I. THE FAMILIES IN THE MILWAUKEE PARENTAL CHOICE PROGRAM NEED TO HAVE THE CONSTITUTIONAL CLOUD REMOVED.

The journey for several thousand economically disadvantaged families now participating in the Milwaukee Parental Choice Program has been a tumultuous one. By

the time of the Wisconsin Supreme Court's preliminary injunction in August 1995, more than 4,000 children had applied for the expanded program, and over 3,400 had been admitted to participating private schools. Pet. App. 8a n.3. The injunction had the effect of rolling back enrollment in the program to approximately 1,600 students and excluding religious schools from the range of options, thereby throwing both families and schools into disarray. See, e.g., Testimony of Pilar Gonzalez (Jt. App. 396-97); Testimony of Valerie Johnson (Jt. App. 406-08). Following remand from the Wisconsin Supreme Court, the trial court provided partial interim relief, lifting the injunction with respect to the number of eligible children, but then reinstated the rollback following an adverse final decision. Pet. App. 9a.

Now that the Wisconsin Supreme Court has upheld the program in its entirety, approximately 15,000 children from low-income families are eligible for the expanded educational opportunities the program provides. According to press accounts, approximately 6,000 children and more than 80 private schools are participating in the program in the 1998-99 school year.[5] Twice so far during the pendency of this litigation, many of the economically disadvantaged families in this program have looked forward to new educational opportunities for their children only to have them snatched away. Those families cannot be secure until this Court has affirmed the constitutionality of parental choice. Moreover, the current cloud

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[5] See Jon Jeter, "As Test of Vouchers, Milwaukee Parochial School Exceeds Expectations," *Washington Post* (Aug. 31, 1998) at A3.

of constitutional uncertainty limits the full potential of the Milwaukee program. One premise of school choice policies is that the availability of paying students will induce new private schools to form and existing private schools to expand. This, however, requires the investment of capital that is not likely to occur if there is a substantial threat that parental choice may be held unconstitutional in the near future. The likely result is to confine families to whatever places happen to be unfilled at existing schools. This is an immediate negative consequence to our clients caused by the legal uncertainty that only this Court can resolve.

As a consequence, respondent parents take the unusual step of supporting the writ, for the purpose of securing for their children and others similarly situated – not only in Wisconsin but throughout America – desperately needed educational opportunities.

II. BECAUSE PARENTAL CHOICE PLAYS A CENTRAL ROLE IN EDUCATION REFORM, ITS CONSTITUTIONALITY SHOULD BE RESOLVED AS QUICKLY AND DEFINITIVELY AS POSSIBLE.

A. Parental choice is a central component of efforts around the nation to deliver high-quality educational opportunities to disadvantaged and minority schoolchildren.

"[E]ducation is perhaps the most important function of state and local governments." *Brown v. Board of Education*, 347 U.S. 483, 493 (1954). The program at issue in this case represents a major facet of the State of Wisconsin's sweeping efforts to deliver on the promise made in *Brown:* that education, "where the state has undertaken to

provide it, is a right which must be made available to all on equal terms." *Id.*; see also *Davis v. Grover*, 480 N.W.2d at 547 (Ceci, J., concurring) ("The Wisconsin legislature . . . has attempted to throw a life preserver to those Milwaukee children caught in the cruel riptide of a school system floundering upon the shoals of poverty, status-quo thinking, and despair.").

It is difficult to overstate the crisis in urban education. In the Milwaukee Public Schools, only 48 percent of the students graduate, and the annual dropout rate is more than seven times the statewide average. See Howard L. Fuller and Sammis B. White, *Expanded School Choice in Milwaukee* (1995) at 16 (Jt. App. 165). The system's failure is most pronounced among minority and low-income children. In 11 MPS high schools that enroll more than three-fourths of the city's black students, the median grade-point average is less than 1.5 on a four-point scale, and the failure rate in core academic courses ranges from 26 to 43 percent. *Id.* at 4 (Jt. App. 153).

This crisis reflects nationally in poor achievement among minority students, who are disproportionately consigned to failing large urban school districts. The National Assessment of Educational Progress (NAEP) reported in 1995 that only 12 percent of black seniors (compared to 40 percent of whites) were proficient in reading.[6] The 1997 NAEP also found that while 76 percent of white fourth-graders were proficient in basic mathematics skills, only 41 percent of Hispanic and 32

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[6] See Dennis Kelly, "Kids' Scores for Reading 'In Trouble'," *USA Today* (Apr. 28-30, 1995) at 1A.

percent of black students demonstrated basic proficiency.[7] The typical black high school senior scores four academic years behind the typical white senior – a gap that has widened substantially over the past decade. See Stephan Thernstrom and Abigail Thernstrom, *America in Black and White: One Nation, Indivisible* (1997) at 355. Despite the massive investment of public and private resources, little progress has been made toward delivering high-quality educational opportunities to poor inner-city children, a fact that likely is attributable in large part to the highly bureaucratic nature of large urban public school systems. See, e.g., John E. Chubb and Terry M. Moe, *Politics, Markets & America's Schools* (1990) at 181, cited with approval in *Davis v. Grover*, 480 N.W.2d at 472.

Against this discouraging backdrop, parental choice offers real promise. As a model for education reform, parental choice encompasses two essential elements: (1) it transfers control over state education funding from state officials to parents; and (2) it creates competition among schools for low-income students and the dollars they command. The Milwaukee Parental Choice Program exemplifies this reform model. The program serves an exclusively low-income and overwhelmingly minority student population. See Fuller and White at 22 (Jt. App. 170). Though expert assessments of academic performance differ, in 1996 the Kennedy School team for the first time compared test scores of students in the Milwaukee Parental Choice Program who were admitted to private schools through random selection with students

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[7] See "U.S. Students Make Progress in Math," *Dallas Morning News* (Feb. 28, 1997) at 6A.

who were not selected for the program. They found substantial academic gains after the students' third and fourth years in the program, reducing substantially the chronic achievement gap between minority and non-minority students.[8] See Greene, *et al.*, *supra*. Those results mirror similar positive outcomes in publicly and privately funded parental choice programs elsewhere in the country. See Paul E. Peterson and Bryan C. Hassel, eds., *Learning from School Choice* (1998). Likewise, the record in this case establishes that the choice program has stimulated positive reform efforts within the Milwaukee Public Schools. See Testimony of petitioners' expert, MPS Superintendent Robert Jasna (Jt. App. 414-32); Testimony of respondents' expert, former MPS Superintendent Dr. Howard L. Fuller (Jt. App. 339-49); Affidavit of Milwaukee School Board Member John Gardner (Jt. App. 241).

The foregoing discussion is not intended to extol the benefits of parental choice. The record in that regard speaks for itself, and the policy efficacy of parental choice is not before this Court. Rather, it is clear that parental choice is an increasingly important method of expanding educational opportunities for children who desperately

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[8] These statistics eminate from the program prior to its expansion to include religious schools. We expect similar, if not more dramatic, post-expansion results. The wider range of educational opportunities will allow for more competition and greater innovation. Further, studies indicate that religious schools produce substantial academic gains among urban minority students. Derek Neal, "The Effects of Catholic Secondary Schooling on Educational Achievement," 15 *J. Labor Econ.* 98 (1997).

need them. For that compelling reason, the need for a dispositive ruling on the constitutional issue is urgent.

B. The Court should not wait to resolve the constitutional issue because it is frequently raised in legislative debates over parental choice, necessitating clear guidance from this Court.

The debate over parental choice is unusual because arguments over constitutionality often are raised in the legislative context. Not only courts but legislators need guidance on the constitutional issues so that states are not impeded in fully exercising the educational authority reserved to them by the Tenth Amendment. A vibrant model for urgently needed education reform should not be held hostage to jurisprudential uncertainty.

Despite the potential that parental choice holds for enhancing the quality of education received by economically disadvantaged children across the nation, the constitutional cloud over parental choice programs serves as a formidable barrier to progress. As petitioners note, school choice legislation has been considered in at least 21 state legislatures and the United States Congress. Pet. 20. But whenever such proposals are discussed, legislators inevitably debate their constitutionality.

Thus, for example, in the Commonwealth of Pennsylvania, a constitutional point of order killed a school choice plan in 1991.[9] No further consideration of the bill's merits was allowed in the House of Representatives

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[9] *Commonwealth of Pennsylvania Legislative Journal*, Dec. 11, 1991, 175th Session, pg. 1928.

because a majority thought the proposal was unconstitutional. In 1995 – in a striking illustration of the uncertainty surrounding the question presented here – the same constitutional point of order was raised, but the House reversed itself and voted to sustain the constitutionality of the school choice proposal.[10]

While other states do not have a formal mechanism similar to Pennsylvania's for debating constitutional issues related to legislative proposals, the doubts expressed about the constitutionality of choice plans are one element of the school choice debate that remains constant across the nation. To give just a few examples, in the United States House of Representatives, Delegate Eleanor Holmes Norton objected to a scholarship program for District of Columbia students by arguing that the bill was unconstitutional, citing the court of appeals decision in this case (Pet. App. 59a) that subsequently was overturned by the Wisconsin Supreme Court.[11] In California, the State Superintendent of Public Schools and many State Senators opposed a voucher plan introduced by Governor Pete Wilson and passed by the State Assembly by asserting that it was unconstitutional.[12] In Colorado, a pilot program for school vouchers was killed in the State House of Representatives when its opponents argued that

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[10] *Commonwealth of Pennsylvania Legislative Journal*, June 16, 1995, 179th Session, pg. 1464.

[11] See David Vise, "District School Voucher Bill Gets Congressional Approval," *Washington Post* (May 1, 1998) at C1.

[12] See Jon Matthews, "School Voucher, Welfare-Limits Bills Rejected," *Sacramento Bee* (July 4, 1996) at A3; Jan Ferris, "Voucher Plan Leaves a Trail of Confusion," *Sacramento Bee* (Jan. 11, 1996) at A10.

it was unconstitutional.[13] And in New Mexico, the chairman of the State House Education Committee refused to bring a voucher bill to the floor on constitutional grounds.[14] As one newspaper cogently observed during a school choice battle in Illinois, "Generally lawmakers don't like to vote on bills that are surrounded by constitutional questions."[15] Indeed, the legislators' oath to uphold the Constitution makes such caution prudent. On the other hand, it would be tragic to stifle desirable educational reform due to a mistaken view of constitutionality.

Other examples of constitutional concerns emerging in parental choice debates across the nation abound.[16] Given the severity of the crisis facing this nation's urban public schools, now is the time for this Court to let

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[13] See "Under the Dome," *Denver Post* (Apr. 16, 1996) at B5.

[14] See Lois Fecteau, "Vouchers for Schools Deep-Sixed," *Albuquerque Journal* (Feb. 5, 1998) at A10.

[15] Ray Serati, "School Vouchers Getting Another Vote in the House," *State Journal-Register* (Apr. 24, 1995) at 7.

[16] See, e.g., Rob Hotakainen, "Legislative Preview; School Vouchers," *Star Tribune (Minneapolis)* (Jan. 14, 1996) at 16A; Johnna Pro, "Choice Proposal Faces Debate," *Pittsburgh Post-Gazette* (May 11, 1995) at A1; Scott Stephens, "School Vouchers Unconstitutional, ACLU Contends," *The Plain Dealer (Cleveland)* (Mar. 30, 1995) at 4B; Jenny Labalme & Larry MacIntrye, "Senate Passes Remediation Measure," *Indianapolis Star* (Mar. 7, 1995) at B3; Jim Sullinger, "School Vouchers Rejected," *Kansas City Star* (Mar. 1, 1995) at C1; Larry Kaplow, "Panel Wary of Private School Plan," *Palm Beach Post* (Feb. 8, 1995) at 5B; Rep. William D. Ford, "Vouchers for Any Elementary School? Don't Send Taxes to Religious Schools," *St. Louis Post-Dispatch* (Aug. 31, 1992) at 3B.

legislators around the nation know that they may consider well-designed parental choice programs free from constitutional doubt.

III. THIS CASE PROVIDES AN IDEAL OPPORTUNITY TO RESOLVE THE CONSTITUTIONALITY OF PARENTAL CHOICE BECAUSE IT PRESENTS A PROTOTYPICAL PARENTAL CHOICE PROGRAM AND THE RECORD IS WELL-DEVELOPED.

Among the cases involving parental choice presently in litigation around the nation, this case provides the best opportunity for the Court to resolve the common constitutional question.[17] The features common to most modern parental choice programs and proposals include: (1) funds placed at the disposal of parents in the form of vouchers, scholarships, tax credits, or tax deductions; (2) private schools added to the range of public education options; and (3) aid targeted to economically disadvantaged or at-risk youngsters. Those features are embodied within the Milwaukee Parental Choice Program.[18]

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[17] Respondents' counsel also represent parties in the Ohio, Vermont, Maine, and Arizona cases discussed in section IV, *infra*. All of the cases involve federal Establishment Clause issues, but most present state constitutional issues as well. As a result, those cases cannot be relied upon to provide vehicles for this Court to address the pervasive Establishment Clause question.

[18] Those three features also are embodied within the Ohio and Arizona programs, although the Arizona program provides state income tax credits for contributions to scholarship funds rather than direct aid to students. The Vermont and Maine programs date back to the 19th century and provide tuition for

Accordingly, a decision in this case would have a broad impact on other parental choice programs and proposed legislation.

This case also presents a clearly worded statute and a program that has functioned for seven years (prior to the inclusion of religious schools). It is clear from the face of the Milwaukee Parental Choice Program that "aid is allocated on the basis of neutral, secular criteria that neither favor nor disfavor religion, and is made available to both religious and secular beneficiaries on a nondiscriminatory basis." *Agostini v. Felton*, 117 S. Ct. 1997, 2014 (1997). The record contains evidence placing the program in the broader context of public education in Wisconsin, wherein public funding follows parental choices. See *Jackson v. Benson*, Pet. App. 26a n.16 (citing *Witters v. Washington Dep't of Serv. for the Blind*, 474 U.S. 481, 492 (1986) (Powell, J., concurring) (calling for an inquiry into "the nature and consequences of the program viewed as a whole")). Both sides have presented extensive factual evidence; and alone among pending parental choice cases, an evidentiary hearing was held in this case in the trial court, focused in part on the program's "primary effect."[19] For all the foregoing reasons, this is the right

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private schools or public schools in other districts for students in towns that do not have their own public schools.

[19] At the evidentiary hearing, former MPS Superintendent Dr. Howard L. Fuller described the program's "primary effect" as follows:

> [W]e will begin to have a discussion in our community about all of our children. We will begin to have a discussion about how do we create the largest number of learning opportunities for all of these kids.

case at the right time to decide the constitutionality of parental choice.

IV. ALTHOUGH THE DECISION BELOW ACCORDS WITH THE DECISIONS OF THIS COURT, A SPLIT OF AUTHORITY OVER PARENTAL CHOICE SUGGESTS THE NEED FOR THE COURT TO SETTLE THIS IMPORTANT QUESTION.

Among the good reasons to grant the writ, an alleged departure by the Wisconsin Supreme Court from this Court's precedents is not one. To the contrary, the Wisconsin Supreme Court's analysis and application of this Court's precedents were meticulous and correct.[20] But other courts have misapplied this Court's precedents in the parental choice context, leading to contradictory

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> I think that what it will bring into play would be, in addition to the existing schools, there will be new schools out there that will come into being that will find their niche to begin to reach kids that we are not currently reaching or that we are losing. I think it will begin to give poor parents some capacity to have leverage over this entire discussion. And the reason why they will have leverage is because they will begin to have control over resources, the same type of control over resources that people with money have.

Jt. App. 348-49.

[20] By contrast, the trial court, which struck down the expanded program, was openly disdainful of this Court's precedents, declaring that "[i]t can hardly be said that this does not constitute direct aid to the sectarian schools. Although the U.S. Supreme Court has chosen to turn its head and ignore the real impact of such aid, this court refuses to accept that myth." Pet. App. 166a.

holdings on the Establishment Clause question and underscoring the need for definitive guidance from this Court.

A. The Wisconsin Supreme Court's decision correctly applies this Court's Establishment Clause jurisprudence.

Petitioners urge that the present case is virtually identical to the programs struck down by this Court in *Committee for Public Education v. Nyquist*, 413 U.S. 756 (1973). To the contrary, this Court in *Nyquist*, *id.* at 782 n.38, specifically reserved the question presented here: "a case involving some sort of public assistance (e.g., scholarships) made available generally without reference to the sectarian-nonsectarian, public-nonpublic nature of the institution benefited." In *Nyquist*, each facet of the challenged program directed aid to either private schools or the students who patronize them. By contrast, as the Wisconsin Supreme Court observed, the Milwaukee Parental Choice Program operates within a system "in which public funds follow each child, [which] now encompasses a wide range of school choices – mainly public, but some private or religious." Pet App. 26a n.16.

Thus, *Nyquist*'s distinction between state programs that channel aid exclusively to private (predominantly religious) schools, and programs that provide aid to both public and private institutions, is of great significance here. The Milwaukee Parental Choice Program operates within the latter context. Under the state's pupil aid formula, needy students in the Milwaukee district are

permitted to use their per capita share of the state education fund at the school of their choice – public or private. If they choose to attend a public school, their per capita allotment will go to the public school. If they choose to attend a private secular school, their per capita allotment will go to the private secular school. If they choose to attend a private religious school, their per capita allotment will go to the private religious school. The program is thus functionally identical to the example mentioned in *Nyquist*'s footnote 38, the G.I. Bill, in which the government pays a sum for education at any college (public, private secular, or private religious) that the student chooses. Unlike the program struck down in *Nyquist*, state aid here is not confined to use in private schools.

In a series of cases since *Nyquist*, this Court consistently has upheld such "government programs offering general educational assistance." *Zobrest v. Catalina Foothills Sch. Dist.*, 509 U.S. 1, 9 (1993). The Wisconsin Supreme Court appropriately and carefully applied this Court's post-*Nyquist* precedents, specifically *Mueller v. Allen*, 463 U.S. 388 (1983); *Witters, supra; Zobrest, supra; Rosenberger v. Rector and Visitors of Univ. of Va.*, 515 U.S. 819 (1995); and *Agostini, supra*. From this line of decisions, the Wisconsin Supreme Court distilled the following principle in applying the primary effect prong of the *Lemon*[21] test:

> [S]tate educational assistance programs do not have the primary effect of advancing religion if those programs provide public aid to both sectarian and nonsectarian institutions (1) on the

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[21] *Lemon v. Kurtzman*, 403 U.S. 602 (1971).

> basis of neutral, secular criteria that neither favor nor disfavor religion; and (2) only as a result of numerous private choices of the individual parents of school-age children.

Pet. App. 25a. Because the program "plac[ed] on equal footing the options of public and private school choice, and vest[ed] power in the hands of parents to choose where to direct the funds allocated for their children's benefit," Pet. App. 28a, the court concluded the amended Milwaukee Parental Choice Program fit squarely within the framework of what is permissible under this Court's Establishment Clause jurisprudence.

Petitioners allege that the program is unconstitutional because most of the options available to parents are religious schools. In fact, within the range of educational choices made available by the state's educational funding system, the vast majority of choices are public schools. See *Jackson v. Benson*, Pet. App. 26a n.16; see also *Milwaukee Public Schools Directions* (1995) (Rec. Doc. 216, Ex. H). In any event, the statistical snapshot is not a proper mooring to which petitioners may tether their case. As this Court admonished in *Agostini*, 117 S. Ct. at 2013 (citing *Mueller*, 463 U.S. at 401), "Nor are we willing to conclude that the constitutionality of an aid program depends on the number of sectarian schools who happen to receive the otherwise neutral aid."

For all those reasons, it is manifestly unnecessary for this Court to overturn *Nyquist* in order to affirm the Wisconsin Supreme Court's decision. It need only reaffirm and apply the principles it relied upon in *Mueller*,

Witters, *Zobrest*, *Rosenberger*, and *Agostini*.[22] Still, as this Court acknowledged in *Agostini*, 117 S. Ct. at 2010, the Court's Establishment Clause jurisprudence has changed since the era in which *Nyquist* was decided, specifically, "our understanding of the criteria used to assess whether aid to religion has an impermissible effect." At the same time, the nature of school choice has evolved from 1970s-style "parochaid" into an essential ingredient of systemic public education reform. In light of these changed circumstances, it is timely and necessary for this Court to address the constitutional question.

B. Lower courts have reached conflicting conclusions in applying this Court's precedents.

Respondents agree with petitioners' contention that this Court's "Establishment Clause jurisprudence has proved susceptible to . . . radically differing interpretations" (Pet. 19). Indeed, this Court before has acknowledged that "[i]t is not at all easy . . . to apply this Court's various decisions construing the Clause." *Mueller v. Allen*, 463 U.S. at 393.

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[22] Indeed, the Court need not go so far as *Rosenberger* or *Agostini*, which involved the arguably direct provision of funds to religious activities or services to students in religious schools. The program here provides indirect aid by placing funds at the disposal of parents. The state confers no endorsement of religion when parents choose to use neutrally available state aid at religious schools. See *Agostini*, 117 S. Ct. at 2016; see also *Zobrest*, 501 U.S. at 22-23 (Blackmun, J., dissenting) ("When government dispenses public funds for individuals who employ them to finance private choices, it is difficult to argue that government is actually endorsing religion.").

At present, no consensus among lower courts exists as to whether the Establishment Clause prevents parents from sending children eligible for choice programs to religious schools if the program is neutral on its face between sectarian and nonsectarian alternatives and the transmission of public funds is guided by the independent decisions of parents.

Consistent with the Wisconsin Supreme Court, the Vermont Supreme Court held that the First Amendment does not require the exclusion of religious schools from choice programs. *Campbell v. Manchester Board of Sch. Directors*, 641 A.2d 352 (Vt. 1994). Pursuant to Vermont law, towns that do not maintain a public high school are required to pay the tuition costs of local students to attend "an approved public or independent high school, to be selected by the parents or guardians of the pupil, within or without of the state."[23] Despite the broad language of the statute, the school board of a "tuitioning town" refused to allow the reimbursement of the plaintiffs in the case, who lived in a town that did not operate a public high school, for the tuition costs of sending their son to an out-of-state sectarian school; the board claimed by doing so it would run afoul of the Establishment Clause.

Although the Vermont Supreme Court earlier had held that the First Amendment prevented towns from reimbursing parents under the same statute for tuition paid to religious schools, see *Swart v. South Burlington Town Sch., Dist.*, 167 A.2d 514 (Vt. 1961), the court

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[23] Vt. Stat. Ann. tit. 16, § 822(a)(1).

reviewed the constitutional issues anew in light of this Court's "more recent teachings." *Campbell*, 641 A.2d at 357. Perceiving some tension between *Nyquist*, on the one hand, and *Mueller* and *Witters*,[24] on the other, the court held the case governed by the principles set forth in the two latter cases.

Two factors were critical to the court's holding. First, consistent with this Court's analysis in *Mueller*, it emphasized that "tuition reimbursement covers all students whether or not they attend a public or private school, whereas in *Nyquist* it went only to private school students." *Campbell*, 641 A.2d at 360. And second, the court concluded that this Court's evolving jurisprudence lent greater weight in *Mueller* and *Witters* than in *Nyquist* to the presence of parental choice in directing neutrally provided state assistance. Accordingly, the court, although careful to restrict the reach of its decision to the specific factual record before it, held that the Establishment Clause did not bar the plaintiffs from receiving tuition reimbursement for the cost of educating their son at a religious school.[25]

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[24] The case was decided before *Rosenberger* and *Agostini*.

[25] Respondents strongly question the relevance of petitioners' observation that the Vermont program involves "facts peculiar to small school districts" (Pet. 22 n.19). In both Vermont and Milwaukee, state funding follows a student to the public or private school of his choice; the only difference between the two is that certain towns in Vermont do not operate their own public schools. But given the argument advanced in the petition, it is difficult to understand why this distinction would be pertinent to the Establishment Clause challenge presented in this case.

Similarly, an Ohio Court of Common Pleas, examining a Cleveland scholarship program that petitioners concede is quite similar to the program at issue here (Pet. 21 n.18), held that the Establishment Clause did not prevent parents from using publicly funded scholarships to send their children to religious schools. See *Gatton v. Goff*, slip op., No. 96-CVH-01-193, (Ohio Ct. Common Pleas July 31, 1996), *overruled by Simmons-Harris v. Goff*, No. 96APE08-982, 1997 WL 217583 (Ohio Ct. App. May 1, 1997).[26] The court divided this Court's jurisprudence into two categories: impermissible programs providing direct assistance to private sectarian schools and constitutional programs channeling benefits to parents who may apply them in religious schools. The court observed that scholarships were available "without respect to the sectarian or nonsectarian nature of the schools benefited" and that the statute allowed students to use their scholarships in adjacent public school districts. *Id.* at 25. It also noted that schools only received money as a result of parental choices. For those reasons, the court concluded that parents seeking to use scholarships to send their children to religious schools need not be excluded from the choice program.

By contrast, some courts have embraced the position taken here by petitioners. The Ohio Court of Appeals

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[26] Respondents of course are aware that the opinion of the Ohio Court of Common Pleas no longer constitutes good authority as its judgment was reversed by the Ohio Court of Appeals; the case is now before the Ohio Supreme Court. It is discussed, nevertheless, to underscore how this Court's Establishment Clause precedents are open to inconsistent interpretation.

reversed the Court of Common Pleas, concluding that the Cleveland scholarship program constituted impermissible direct and substantial aid to sectarian schools.[27] *Simmons-Harris v. Goff*, No. 96APE08-982, 1997 WL 217583 (Ohio Ct. App. May 1, 1997).[28] Noting that no adjacent public school district had chosen to accept scholarship students, the court concluded that the program was not neutral. Because most of the private schools in Cleveland are sectarian, the court characterized the statute as skewing parental choices toward religious schools. Contending that the law framed parents' choices in such a way as to steer aid to sectarian schools, the court held that the program gave such schools a "direct government subsidy."[29] The subsidy, moreover, was substantial because a "significant portion" of the publicly funded scholarships would end up flowing to sectarian schools.

A Maine Superior Court likewise concluded that the Establishment Clause prevented parents participating in a choice program from sending their son to a religious school. *Bagley v. Maine Dep't of Educ.*, slip op., No.

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[27] The court also struck down the program on unrelated state constitutional grounds.

[28] The Ohio Supreme Court stayed the Court of Appeals' decision, thereby allowing the scholarship program, now in its third year, to continue.

[29] It is rather misleading to characterize the Ohio program, or indeed the Milwaukee Parental Choice Program, as "subsidizing" religious schools. In Ohio, for example, scholarships do not even cover the full cost of tuition at participating schools. And in Milwaukee, private schools can receive no more than their per-pupil costs. Private schools most emphatically do not receive a financial windfall from choice programs.

CV-97-484 (Me. Superior Ct. Apr. 20, 1998). The State of Maine operates a choice program similar to Vermont's; Maine, however, statutorily excludes any sectarian school.[30] Responding to the claim that such a restriction violated the Free Exercise Clause, the Maine Department of Education defended its constitutionality by maintaining that the exclusion of tuition payments for religious schools was mandated by the Establishment Clause. In a cursory analysis, the court, citing *Nyquist*, agreed, holding that the effect of such tuition payments would be to "subsidize and advance religion."[31] *Id.* at 3.

Remarkably, a Vermont Superior Court has openly placed itself "at odds" with the decision of its own supreme court. *Chittenden Town Sch. Dist. v. Vermont Dep't of Educ.*, slip op., No. S0478-96 RcC (Vt. Superior Ct., Rutland Cty., June 27, 1997), at 45. The case raised the issue of prepayment of tuition, as opposed to reimbursement, which was at issue in *Campbell*. The State Board of Education refused to allow parents to direct state tuition aid to send their children to a religious school even though they lived in a town that operated no public high school and the statutory scheme allowed such payments. Accepting the Board's argument that such payments

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[30] Me. Rev. Stat. Ann. tit. 20, § 2951(2).

[31] A federal district court recently addressed a similar challenge to the Maine statute. While it rejected the free exercise argument, the court specifically avoided the question of whether Maine constitutionally could include sectarian schools in its choice program, citing this Court's recent jurisprudence for the proposition that First Amendment restrictions are not as strict as they once were. *Strout v. Maine Dep't of Educ.*, slip op., No. 97-259-B-H (D. Me. Aug. 13, 1998).

would violate the Establishment Clause, the court held that the case was controlled by *Nyquist*'s prohibition of "direct and substantial aid." Interpreting this Court's line of Establishment Clause cases in a different manner than the Wisconsin Supreme Court (and indeed, its own supreme court), the Vermont Superior Court stated:

> *Mueller, Witters,* and *Zobrest,* do not overrule the general principle in *Nyquist* and *Agostini* that the State may not grant aid to a religious school, whether cash or in kind, whether provided to parents or students, where the effect of the aid is to subsidize the religious mission of the school or finance religious indoctrination.

Chittenden at 34. Exemplifying the lack of clarity in this area, the court questioned its own supreme court's reasoning in *Campbell,* labeling it "a departure from the core principles of the Establishment Clause." *Id.* at 46. Although it could identify no relevant factual distinction between the facts before it and those of *Campbell,* the court chose to limit the applicability of *Campbell* to its facts and to hold that the Establishment Clause justified the Board's refusal to prepay tuition for parents who choose to send their children to a religious school.

As these cases illustrate,[32] state courts are divided on the question of whether public funds that reach religious schools through facially neutral parental choice programs constitute direct and substantial aid, forbidden by this

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[32] A case challenging an Arizona income tax credit for contributions to K-12 scholarship funds is pending on original action jurisdiction before the Arizona Supreme Court. *Kotterman v. Killian,* No. CV-97-0412-SA (Ariz. filed Sept. 29, 1997).

Court in *Nyquist*, or indirect and incidental aid not foreclosed by footnote 38 of *Nyquist* and allowed by this Court in a line of cases spanning the last 15 years.[33] Respondents respectfully suggest that widespread confusion concerning the correct answer to this important question makes it appropriate for this Court to grant the petition in order to give direction to the numerous courts around the nation that are considering and will be considering challenges to parental choice programs.

CONCLUSION

This case has ramifications far beyond its formal contours, for the entire nation has a direct stake in securing the broadest possible range of educational opportunities for our nation's children. Most directly at stake, however, is the interest of the respondent families in preserving the precious opportunities secured through the Milwaukee Parental Choice Program. Respondents

[33] Respondents believe that the state supreme court cases cited in footnote 12 of the petition are not relevant to the task of developing coherent principles from this Court's decisions in *Nyquist* and post-*Nyquist* cases. Two of the four decisions were issued before *Nyquist*, and all four preceded *Mueller*. The reasoning in many of these cases, moreover, is inconsistent with this Court's recent jurisprudence and would bring into question such presumptively constitutional programs as Pell Grants and the G.I. Bill. Although the Vermont Supreme Court issued a ruling in *Swart* similar to those cited by petitioners in footnote 12, respondents think it noteworthy that the Vermont Supreme Court reached a different conclusion in *Campbell* when analyzing the issue in light of this Court's more recent decisions.

respectfully urge this Court to grant the petition and to reaffirm and apply its Establishment Clause holdings in the context of parental choice.

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